

Which states have AI laws in effect today?

This tracker summarizes key AI laws that may impact your business. Information is only shown for states with defined laws. Please visit our AI Law Center for the latest information: [orrick.com/ai](https://www.orrick.com/ai)

State/Terr	AI Scope	Relevant Law	Law Link	Effective Date	Key Requirements	Enforcements Penalties
Alabama	AI CSAM	Alabama Child Protection Act of 2024	HB 168	October 1, 2024	Expands the scope the definition of child sexual abuse material to include "virtually indistinguishable depictions" created, altered, or produced by digital, computer generated, or other means.	Existing criminal penalties apply.
Alabama	AI in Political Advertising	Alabama Materially Deceptive Election Media Law	AL HB172	October 1, 2024	- Prohibits the distribution of materially deceptive AI-generated media falsely depicting an individual that is intended to influence an election. - Provides a safe harbor from liability where the person provides a disclaimer that the media has been manipulated by technical means and depicts speech or conduct that did not occur.	- Class A Misdemeanor for first offense. - Class D Felony for subsequent offense.
Arizona	AI Deepfakes	Arizona General Deepfake Law	HB 2394	June 4, 2024	Grants any Arizona citizen (or a candidate for public office or political party office who will appear on the ballot in Arizona) the right to bring an action for preliminary and permanent declaratory relief (and, in certain circumstances, injunctive relief or damages) where: - A digital impersonation (typically video, audio or still image generated by AI) of the person was published to one or more other persons without that person’s consent; - At the time of publication it would not be obvious to a reasonable person that the content was a digital impersonation and the publisher did not reasonably convey to the recipients that the content was a digital impersonation or that its authenticity was disputed; and - The digital impersonation presents some risk of harm (e.g., depicting the person engaging in a criminal or sexual act, resulting in personal hardship or the loss of employment, presenting a risk to an upcoming election).	Permanent declaratory relief, permanent injunctive relief, and in certain circumstances, damages.
Arizona	AI in Political Advertising	Arizona Political Deepfake Law	SB 1359	June 4, 2024	Prohibits any person from creating and distributing a synthetic media message that the person knows is a deceptive and fraudulent deepfake of a candidate for elected office within 90 days of an election unless the synthetic media message includes a clear and conspicuous disclosure that conveys to a reasonable person that the media includes content generated by artificial intelligence.	Permanent declaratory relief, permanent injunctive relief and, in certain circumstances, damages.
Arizona	AI Intimate Images	Amendment of Arizona Intimate Images Law	Arizona Revised Statutes Section 13-1425	September 25, 2025	Extends prohibitions on unlawful disclosure of intimate images to include realistic pictorial representations.	Class 1 Misdemeanor.
Arkansas	AI Ownership	Ownership of Model Training and Generated Content	Arkansas Code Title 18-4-101	April 21, 2025	Sets the following default rules for AI ownership: - The person who provides input or directive to a generative AI tool is the owner of the generated content, provided the content does not infringe on existing copyrights or IP rights. - The person who provides data or input to train a generative AI tool is the owner of the resulting trained model, provided the training data was lawfully acquired and the person has not transferred ownership rights through a contract or agreement. - A person's employer will be deemed the owner of such generated content or resulting trained model where the person is employed and is directed to use a generative AI tool to conduct model training or generate content as part of their employment duties.	N/A
Arkansas	AI CSAM	Amendment of Arkansas CSAM Laws	HB1877	July 21, 2025	Expands the scope of existing child pornography statutes to include AI generated images that are indistinguishable from the image of a child participating or engaging in sexually explicit conduct.	Existing criminal penalties apply.

California	User-Facing AI	California Bot Act	Cal. Bus. & Prof. Code § 17940–17943	July 1, 2019	- Prohibits any person from using a bot online to communicate or interact with a person in California with the intent to mislead the person about the bot’s artificial identity for the purpose of knowingly deceiving the person about the content of the communication in order to incentivize a commercial transaction or influence a vote in an election. - Provides a safe harbor from liability where the person clearly and conspicuously discloses, in a manner reasonably designed to inform the relevant person, that a bot is in use.	Up to \$2,500 per violation.
California	AI in Government	California Government AI Inventory Law	Cal. Gov. Code § 11546.45.5	January 1, 2024	- Requires the California Department of Technology to inventory all high-risk automated decision systems used or proposed by state agencies on or before September 1, 2024, detailing their functions, benefits, data usage, and risk mitigation measures. - Requires the California Department of Technology to submit a report of the comprehensive inventory to specified committees of the California Legislature annually until January 1, 2029.	N/A
California	AI in Political Advertising	Deceptive Media in Election Advertisements	AB 2839	September 17, 2024	Prohibits a person, committee, or other entity from knowingly distributing an advertisement or other election communication that contains certain materially deceptive deepfake content with malice within 120 days of an election in California and, in specified cases, 60 days after an election.	General or special damages.
California	AI in Social Media & Online Platforms	Digital Identity Theft Act	SB 981	January 1, 2025	Requires a social media platform to: - Provide a reasonably accessible mechanism to California users to report to the social media platform any sexually explicit image or video of them posted on that platform that was created or altered through digitization without their consent (i.e., “sexually explicit digital identity theft”); - Temporarily block any covered material from being publicly viewable on the social media platform pending the social media platform’s determination on the report; and - Removing any covered material from being publicly viewable on the social media platform once the platform determines there is a reasonable basis to believe the reported material is sexually explicit digital identity theft.	Not specified.
California	AI Intimate Images	Amendment of California Law Governing Distribution of Intimate Images	SB 926	January 1, 2025	Extends prohibitions on the distribution of intimate images to include the intentional creation and distribution of any sexually explicit image of another identifiable person that was created in a manner that would cause a reasonable person to believe the image is an authentic image of the person depicted, under circumstances in which the person distributing the image knows or should know that distribution of the image will cause serious emotional distress, and the person depicted suffers that distress.	Existing criminal penalties apply.
California	AI CSAM	Amendment of California CSAM Laws	Cal. Penal Code Part 1: Title 9; Chapter 7.5 (311-312.7)	January 1, 2025	Expands the scope of existing child pornography statutes to include matter that is digitally altered or generated by the use of AI.	Existing criminal penalties apply.
California	AI Definition	AI Definition Bill	AB 2885	January 1, 2025	Generally establishes a uniform definition for artificial intelligence (AI) in California Law: “an engineered or machine-based system that varies in its level of autonomy and that can, for explicit or implicit objectives, infer from the input it receives how to generate outputs that can influence physical or virtual environments.”	N/A
California	AI Healthcare	Artificial Intelligence in Health Care Services	Cal. Gov. Code § 1339.75 AB 3030	January 1, 2025	- Requires health facilities, clinics, physician’s offices, and offices of a group practice that uses generative AI to generate written or verbal patient communications pertaining to patient clinical information to ensure those communications include both: - A disclaimer that indicates to the patient that a communication was generated by generative artificial intelligence; and - Clear instructions describing how a patient may contact a human healthcare provider, employee, or other appropriate person. - Exempts from disclosure written communications that are generated by AI that are reviewed by a licensed or certified healthcare provider.	Existing regulatory enforcement mechanisms.
California	AI Healthcare	AI Healthcare Utilization Law	SB 1120	January 1, 2025	Requires health care service plans and disability insurers that use an artificial intelligence, algorithm, or other software tool for the purpose of utilization review or utilization management functions to ensure compliance with specified requirements, including that the tool bases its determination on specified information and is fairly and equitably applied.	Criminal penalties.

California	AI in Government	Generative Artificial Intelligence Accountability Act	SB 896	January 1, 2025	- Requires the Office of Emergency Services to perform a risk analysis of potential threats posed by the use of GenAI to California’s critical infrastructure, and certain other state agencies / actors to take AI into account in various government processes. - Requires a state agency or department that utilizes generative AI to directly communicate with a person regarding government services and benefits to ensure that those communications include both (i) a disclaimer that indicates to the person that the communication was generated by generative artificial intelligence and (ii) describing how the person may contact a human employee of the state agency or department.	N/A
California	AI Privacy	California Consumer Privacy Act	AB 1008	January 1, 2025	Amends the definition of “personal information” under the CCPA to clarify personal information can exist in various formats, including, but not limited to, “abstract digital formats, including compressed or encrypted files, metadata, or artificial intelligence systems that are capable of outputting personal information.”	N/A
California	AI Calling	AI Call Disclosures Law	AB 2905	January 1, 2025	Requires callers using an automatic dialing-announcing device to inform the person called if the prerecorded message uses an artificial voice generated or significantly altered using artificial intelligence.	Up to \$500 per violation.
California	AI in Political Advertising	Amendment to the Political Reform Act	AB 2355	January 1, 2025	Requires any committee that creates, originally publishes, or originally distributes a qualified political advertisement to include in the advertisement a specified disclosure that the advertisement was generated or substantially altered using artificial intelligence.	Up to \$5,000 per violation.
California	AI in Social Media & Online Platforms	Defending Democracy from Deepfake Deception Act of 2024	AB 2655	January 1, 2025	- Requires large online platforms with at least one million California users to develop and implement procedures for the use of state-of-the-art techniques to identify and either remove or label (depending on the closeness in proximity to an election) materially deceptive political deepfake content. - Requires the large online platform to also provide an easily accessible way for California residents to report such content to the platform.	Injunctive or other equitable relief by the Attorney General, any district attorney, or city attorney.
California	AI Likeness	Amendment to Deceased Personality Protections	AB 1836	January 1, 2025	Makes it unlawful for a person to produce, distribute, or make available the digital replica of a deceased personality’s voice or likeness in an expressive audiovisual work or sound recording without appropriate consent.	Greater of \$10,000 or the actual damages suffered by a person controlling the rights to the deceased personality’s likeness.
California	AI Likeness	Replica of Voice or Likeness Law	AB 2602	January 1, 2025	- Makes any provision in an agreement for the performance of personal or professional services unenforceable where: - The provision allows for the creation and use of a digital replica of the individual’s voice or likeness in place of work the individual would otherwise have performed in person; - The provision does not include a reasonably specific description of the intended uses of the digital replica; and - The individual was not represented (i) by legal counsel or (ii) by a labor union.	Unenforceability of a violating contractual provision.
California	AI in Employment	Employment Regulations Regarding Automated-Decision Systems, issued pursuant to the California Fair Employment and Housing Act, Cal. Gov. Code § § 12935(a), 12940, 12941	Civil Rights Council Employment Regulations Regarding Automated-Decision Systems	October 1, 2025	Regulations clarify the application of existing antidiscrimination laws in the workplace in the context of new and emerging technologies, including AI that makes a decision or facilitates human decision making regarding an employment benefit (“Automated-Decision System”): - Employers must not use automated-decision systems that discriminate against applicants or employees on the basis of protected characteristics. - Employers must maintain employment records, including automated-decision system data, for a minimum period of four years.	Existing enforcement mechanisms.

California	Frontier or General-Purpose AI	Transparency in Frontier Artificial Intelligence Act	SB53	January 1, 2026	Imposes obligations on developers who have trained, or initiated training of, a foundation model that was trained using a quantity of computing power greater than 10^26 integer or floating-point operations ("Frontier Model"), including: • Publishing a report on its website with information about the model. • Reporting any critical safety incident involving its models to the OES within 15 days of discovery (and within 24 hours to an appropriate authority in certain circumstances). • Refraining from making materially false or misleading statements regarding the catastrophic risks of its models or how those risks are managed. • Refraining from taking action against an employee for (or issuing policies or contracts that attempt to stop an employee from) reporting serious safety risks or legal violations (plus requiring implementation of certain other whistleblower procedures). Large frontier model developers with over \$500 million in annual revenue must also publish and follow an AI safety and oversight framework, submit a summary of catastrophic risk assessments to the OES, provide additional detail in its online report, and implement additional whistleblower procedures.	Provides a civil penalty up to \$1 million per violation by a large frontier developer, enforced by the state attorney general.
California	AI Transparency	Artificial Intelligence Training Data Transparency Act	AB 2013	January 1, 2026	• Requires AI developers to post information on the data used to train their generative AI on their websites, including a high-level summary of the datasets used, the sources or owners of the datasets, a description of how the data is used, the number of data points in the set, whether copyrighted / IP protected or licensed data is included, and the time period the data was collected (among other information).	Not specified.
California	AI Healthcare	Health Advice From Artificial Intelligence	Cal. Bus. & Prof. Code § 4999.9	January 1, 2026	• Extends to AI technology providers pre-existing prohibitions on the use of any terms, letters, or phrases to indicate or imply (i) possession of a license or certificate to practice a healthcare profession without one or (ii) that the services being offered are being provided by a licensed or certified health care professional (where such claim is not true).	Appropriate health care professional licensing boards and enforcement agencies can take whatever action they authorized by law to take in response to such a violation.
California	AI Liability	Civil Actions	Cal. Civ. Code § 1714.46	January 1, 2026	• Establishes that in an action against a defendant who developed, modified, or used artificial intelligence that is alleged to have caused a harm to the plaintiff, it shall not be a defense, and the defendant may not assert, that the artificial intelligence autonomously caused the harm to the plaintiff.	N/A
California	User-Facing AI	California Companion Chatbot	Cal. Bus. & Prof. Code § 22601 et. seq.	January 1, 2026	• Requires operators of a "companion chatbot platform" to: - Issue a clear and conspicuous notification indicating that the chatbot is artificially generated and not human where a reasonable person interacting with the bot would be misled to believe that the person is interacting with a human; - Maintain and publish online details about a protocol for preventing the production of suicidal ideation, suicide, or self-harm content to the user (including automated notification to the user that refers them to crisis service providers if they express such ideas); - Implement measures where the operator knows a user is a minor (under 18) to disclose that the user is interacting with AI, provide a clear and conspicuous notification at least every 3 hours that reminds the user to take a break and that the bot is AI, and institute reasonable measures to prevent the bot from producing visual material of sexually explicit conduct or directly stating the minor should engage in sexually explicit conduct; - Disclose on its platform that companion chatbots may not be suitable for some minors; and - Report annually on its compliance.	Provides a private right of action for anyone injured by a violation to seek injunctive relief, reasonable attorneys fees and damages in an amount equal to the greater of actual damages or \$1,000 per violation.

California	AI in Government	Law Enforcement Usage of Artificial Intelligence	Cal. Civ. Code § 13663	January 1, 2026	• Requires law enforcement agencies to maintain a policy to require an official report prepared by the law enforcement agency (or one of its members) that is generated using AI either fully or partially to contain: - A disclosure on each page of the report (or within the body of the text) that the report was written either fully or in part using AI and the identity of every specific AI program used; and - The signature of the law enforcement officer or member who prepared the official report verifying that they reviewed the contents of the report and that the facts contained in the report are true and correct. • Requires law enforcement agencies who use AI to create an official report, whether fully or partially, to retain the first draft created and to maintain an audit trail for as long as the official report is retained. • Requires contracted vendors to not share, sell, or otherwise use information provided by a law enforcement agency to be processed by AI except for the contracted law enforcement agency's purposes or pursuant to a court order (with certain exceptions for accessing such data for troubleshooting, bias mitigation, accuracy improvement, or system refinement).	N/A
California	AI Transparency	Data Broker Registration AI Disclosures	Cal. Civ. Code § 1798.99.82	January 1, 2026	• Requires data brokers to provide additional information upon registration to the California Privacy Protection Agency, including whether the data broker has shared or sold consumers' data to a developer of a GenAI system or model in the past year.	Up to \$200 for each day the data broker fails to register, an amount equal to the fees that were due during the period it failed to register, and reasonable expenses incurred by the California Privacy Protection Agency during the investigation.
California	AI in Real Estate	Real Estate Digitally Altered Images Disclosures	Cal. Bus. & Prof. Code § 10140.8	January 1, 2026	• Requires real estate brokers, salespersons and persons acting on their behalf who include a digitally altered image (including AI altered images) in an advertisement or other promotional material for the sale of real property to include a statement disclosing that the image has been altered and a link to a publicly accessible internet website, URL, or QR code that includes, and clearly identifies, the original, unaltered image.	Disciplinary action under the California Real Estate Regulations, including potential revocation or suspension of real estate licenses.
California	Algorithmic Pricing	Cartwright Act Common Pricing Algorithm Amendment	AB 325	January 1, 2026	• Makes it unlawful for a person to use or distribute a common pricing algorithm as part of a contract, combination in the form of a trust, or conspiracy to restrain trade or commerce in violation of the law. • Makes it unlawful for a person to use or distribute a common pricing algorithm if the person coerces another person to set or adopt a recommended price or commercial term recommended by the common pricing algorithm for the same or similar products or services in California. • Defines "common pricing algorithm" as "any methodology, including a computer, software, or other technology, used by two or more persons, that uses competitor data to recommend, align, stabilize, set, or otherwise influence a price or commercial term."	Criminal and civil penalties are available, including up to \$6 million in criminal penalties or double either the gross gain derived from the violation or the gross loss suffered by the victim, whichever is greater.

California	AI Transparency	California AI Transparency Act	Cal. Bus. & Prof. Code § 22757 et seq.	August 2, 2026	• Requires providers of certain covered generative AI systems to: - Offer users the option to include in AI-generated image, video or audio content an indicator that the content is AI-generated content; - Include a detectable, latent disclosure in AI-generated image, audio, and video content created by the provider's AI system that the content was generated by the system; and - Develop and make available tools to detect whether specified content was generated by the provider's system. • Starting January 1, 2027, prohibits a GenAI system hosting platform from knowingly making available a GenAI system that does not place the disclosures identified above. • Starting January 1, 2027, requires certain large online platforms to: - Detect whether any provenance data that is compliant with widely adopted specifications adopted by an established standards-setting body is embedded into or attached to content distributed on the platform; and - Provide a user interface to disclose the availability of system provenance data that reliably indicates that the content was generated or substantially altered by a GenAI system or captured by a capture device. • Starting January 1, 2028, requires "capture device manufacturers" (e.g., camera and mobile phone manufacturers) to: - Embed a latent disclosure in content captured by the device by default; and - Offer users the option to include a disclosure containing certain information in content captured by the capture device.	Up to \$5,000 per violation.
California	AI in Social Media & Online Platforms	California AI Transparency Act	Cal. Bus. & Prof. Code § 22757 et seq.	August 2, 2026	• Starting January 1, 2027, requires certain large online platforms to: - Detect whether any provenance data that is compliant with widely adopted specifications adopted by an established standards-setting body is embedded into or attached to content distributed on the platform; and - Provide a user interface to disclose the availability of system provenance data that reliably indicates that the content was generated or substantially altered by a GenAI system or captured by a capture device.	Up to \$5,000 per violation.
California	Automated Decision-Making	California Consumer Privacy Act Regulations	11 CCR § 7001 et seq.	January 1, 2027	Addresses the use of automated decision-making technology ("ADMT") when used to make significant decisions regarding consumers (those relating to financial or lending services, housing, education, employment, and healthcare): • Businesses must conduct a risk assessment when using ADMT to make significant decisions, or when using personal information to train ADMT. • Businesses that make ADMT (trained on personal information) available to another business to make a significant decision must provide to the recipient-business all facts available to the business that are necessary for the recipient-business to conduct its own risk assessment. • Businesses must provide pre-use notices to inform consumers about the use of ADMT, details about the ADMT, and the right to opt-out and access further information. • Businesses must allow consumers to opt out and provide consumers with access to information about the ADMT's use and logic. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.
Colorado	AI in Insurance	Colorado Protecting Consumers from Unfair Discrimination in Insurance Practices	Co. Rev. Stat. 10-3-1104.9 Reprinted from Westlaw with the permission of Thomson Reuters.	July 6, 2021	• Prohibits insurance providers from using algorithms or predictive models that unfairly discriminate based on race, color, national or ethnic origin, religion, sex, sexual orientation, disability, gender identity, or gender expression. • Requires the Colorado Commissioner of Insurance to adopt rules requiring insurers to demonstrate that their use of algorithms and predictive models do not result in unfair discrimination.	Up to \$3,000 per violation, or \$30,000 per knowing violation.

Colorado	Automated Decision-Making	Colorado Privacy Act	Col. Rev. Stat. § 6-1-1301 et seq. <i>Reprinted from Westlaw with the permission of Thomson Reuters.</i>	July 1, 2023	- Provides consumers the right to opt-out of any form of automated processing of personal data to evaluate, analyze, or predict personal aspects concerning an identified or identifiable individual's economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of solely-automated decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, healthcare services, or access to essential goods and services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$20,000 per violation.
Colorado	AI in Political Advertising	Colorado Candidate Election Deepfake Disclosures Law	Co. Rev. Stat. 1-45-111.5 to 111.7 and 1-46-101 to 106 <i>Reprinted from Westlaw with the permission of Thomson Reuters.</i>	July 1, 2024	- Prohibits the distribution of AI-generated deepfakes of election candidates. - Provides a safe harbor from liability where the person provides a clear and conspicuous disclaimer that the media has been edited and depicts speech or conduct that falsely appears to be authentic or truthful.	At least \$100 per violation and 10% of the amount spent on the communication.
Colorado	AI CSAM	Preventing Unauthorized Disclosure of Intimate Digital Depictions Act	SB 288	August 6, 2025	Expands child sexually exploitative material to include a realistic visual depiction, which has been created, altered, or produced by digitization or computer-generated means, that depicts an identifiable child, in whole or in part, engaged in, participating in, observing, or being used for explicit sexual conduct.	Plaintiffs may bring civil actions to obtain relief, and a court may order a temporary restraining order, injunctive relief, and order the defendants to cease disclosure.
Colorado	AI Intimate Images	Preventing Unauthorized Disclosure of Intimate Digital Depictions Act	SB 288	August 6, 2025	- Allows an individual depicted in an intimate digital depiction to sue the individual who disclosed or threatened to disclose the picture if they acted with knowledge or disregard for whether the depicted individual: did not consent to the disclosure; would experience serve emotional distress; and was identifiable. - Expands the scope of Colorado's intimate image harassment statute to include intimate digital depictions.	- For intimate digital depictions - the greater of actual damages or liquidated damages of \$150,000, plus an amount equal to the monetary gain, exemplary damages, and the cost of the action; as well as equitable relief. - For intimate image harassment - existing criminal penalties apply.
Colorado	Comprehensive AI	Colorado AI Act	Co. Rev. Stat. § 6-1-1701 et seq. <i>Reprinted from Westlaw with the permission of Thomson Reuters.</i>	June 30, 2026	- Requires developers and deployers of high-risk AI systems to use reasonable care to protect consumers from algorithmic discrimination. - Requires developers to address internal documentation requirements relating to model characteristics and risk management measures, as well as transparency obligations owed primarily to deployers. - Requires deployers to implement an appropriate risk management program, conduct comprehensive impact assessments, and address transparency obligations owed primarily to consumers. - Requires deployers to disclose certain information to the consumer and provide them a right to correct their information and/or appeal if the use of a high-risk AI system results in an adverse decision for a consumer. - Requires all AI systems intended to interact with consumers to be accompanied by a disclosure that the consumer is interacting with an AI system.	Up to \$20,000 per violation.
Connecticut	Algorithmic Pricing	Transportation Network Company Dynamic Pricing	Conn. Gen. Stat. § 13b-118	January 1, 2018	- Requires any transportation network company that elects to implement dynamic pricing to: - Provide notice to a potential rider that dynamic pricing is in effect before a request for a prearranged ride may be submitted; - Provide a fare estimator that enables the rider to estimate the cost of the ride under dynamic pricing; - Provide a feature that requires the rider to confirm that he or she understands that dynamic pricing will be applied to the cost of the ride; - Refrain from increasing the price of a ride to more than 2.5 times the usual price charged in an area experiencing any disaster or emergency. - Defines "dynamic pricing" to mean "a price that changes according to the demand for prearranged rides and availability of transportation network company drivers."	Suspension, revocation or refusal to renew transportation network company registrations (plus fine of not more than \$50k for operating without valid registration).

Connecticut	AI in Government	Connecticut Act Concerning AI, Automated Decision-Making and Personal Data Privacy	SB 1103	July 1, 2023	- Requires the Department of Administrative Services to prepare an inventory of the AI systems in use by any Connecticut state agency and perform ongoing assessments of such AI systems to ensure they do not result in unlawful discrimination or disparate impact. - Directs Connecticut government agencies to establish policies and procedures concerning the development, procurement and implementation of such systems.	N/A
Connecticut	Automated Decision-Making	Connecticut Data Privacy Act	Conn. Gen. Stat. § 42-515 et seq.	July 1, 2023	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, demographic characteristics, personal preferences, interests, reliability, behavior, location, or movements in furtherance of solely-automated decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health-care services, or access to essential goods and services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$5,000 per violation.
Connecticut	AI Transparency	Connecticut Data Privacy Act	SB1295	July 1, 2026	Requires controllers to include a statement in their privacy notice disclosing whether the controller collects, uses or sells personal data for the purpose of training large language models.	Up to \$5,000 per violation.
Delaware	AI in Government	Delaware Artificial Intelligence Commission Act	HB 233	July 17, 2024	Requires the Delaware Artificial Intelligence Commission to conduct an inventory of all generative AI usage in Delaware government.	N/A
Delaware	AI Intimate Images	Amendment to the Delaware Code Relating to Deepfakes	HB 353	August 7, 2024	Sets out civil and criminal remedies for wrongful disclosure of deepfakes that depict individuals in the nude or engaging in sexual conduct so long as the depicted person is identifiable and did not consent to the disclosure.	Existing criminal penalties under the Unauthorized Disclosure of Intimate Images statute apply.
Delaware	Automated Decision-Making	Delaware Personal Data Privacy Act	Del. Code tit. 6, § 12D-101 et seq.	January 1, 2025	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, demographic characteristics, personal preferences, interests, reliability, behavior, location, or movements in furtherance of solely-automated decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health–care services, or access to essential goods and services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$10,000 per violation.
Florida	AI in Political Advertising	Florida Act Relating to AI Use in Political Advertising	HB 919	July 1, 2024	Requires political advertisements and electioneering communications containing AI-generated deepfakes intended to influence an election to include a disclaimer indicating the content was created in whole or in part with the use of generative AI.	Misdemeanor of the First Degree.

Florida	Automated Decision-Making	Florida Digital Bill of Rights	SB 262	July 1, 2024	- Provides consumers the right to opt-out of any form of solely automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, health care services, education enrollment, education opportunities, criminal justice, or access to basic necessities like food and water). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$50,000 per violation.
Florida	AI CSAM	Amendment of Florida CSAM Laws	SB 1680	January 1, 2025	Expands the scope of existing child pornography statutes to include any image that has been created, altered, adapted, or modified be electronic, mechanical, or other computer-generated means to portray a fictitious person, who a reasonable person would regard as being a real person younger than 18 years of age, engaged in sexual conduct.	Existing criminal penalties apply.
Georgia	AI Intimate Images	Prohibition on Nude or Sexually Explicit Electronic Transmissions	Ga. Code § 16-11-90	May 2, 2022	Expands the definition of non-consensual nude or sexually explicit electronic transmissions to include “falsely created videographic or still images.”	Existing criminal penalties apply.
Georgia	AI CSAM	Amendment of Georgia CSAM Law	SB 466	July 1, 2024	Clarifies that claiming CSAM was adapted or modified to appear as though an identifiable minor is engaging in sexually explicit conduct is not a defense to existing CSAM laws.	Existing criminal penalties apply.
Hawaii	AI Intimate Images	Amendment to Intimate Image Law	SB 309	June 23, 2021	Expands the scope of Hawaii's violation of privacy in the first degree to encompass the intentional creation of a nude or sexually explicit image or video of a "composite fictitious person" that is identifiable as an individual with intent to harm that person.	Existing penalties apply.
Hawaii	AI in Political Advertising	Deceptive Media in Election Advertisements	SB 2687	July 3, 2024	Prohibits a person from recklessly distributing materially deceptive media (including media generated by AI) during an election cycle in reckless disregard of the risk of harming the reputation or electoral prospects of a candidate in an election or changing the voting behavior of voters in an election (with an exception for media containing proper disclaimers).	Criminal charges and fines, plus civil action for injunctive relief and general or special damages.
Idaho	AI Definition	Relating to Personhood	I.C. § 5-346	July 1, 2022	Prohibits the granting of personhood to artificial intelligence in the state of Idaho.	N/A
Idaho	AI Intimate Images	Idaho Explicit Synthetic Media law	Idaho Code § 18-6606	July 1, 2024	Prohibits any person from knowingly disclosing explicit synthetic media that realistically misrepresents an identifiable individual as engaging in conduct in which that identifiable individual did not engage where such disclosure (or threatened disclosure) could harm the individual (such as cause substantial emotional distress, or be used to threaten or harass the individual).	Misdemeanor or felony charges, and up to \$25,000 in criminal fines.
Illinois	AI in Employment	Artificial Intelligence Video Interview Act	820 ILCS 42	January 1, 2020	- Requires employers who use AI to analyze applicant video interviews to notify each applicant of the use of AI, explain how the AI works, and obtain the applicant’s consent prior to using the AI. - Requires employers who rely solely on AI to analyze video interviews to determine whether an applicant will be selected for an in-person interview to collect and report to the Department of Commerce and Economic Opportunity annually on the demographic data of the applicants	N/A
Illinois	AI Likeness	Amendment to Right of Publicity Act	HB 4875	August 9, 2024	Makes it unlawful for a person to knowingly distribute, transmit, or make available to the general public a sound recording or audiovisual work with actual knowledge that the work contains an unauthorized digital replica (i.e., a newly created, electronic representation of the voice, image, or likeness of an actual individual created using a computer, algorithm, software, tool, artificial intelligence, or other technology that is fixed in a sound recording or audiovisual work in which that individual did not actually perform or appear, and which a reasonable person would believe is that particular individual’s voice, image, or likeness being imitated).	Actual damages, profits made from the unauthorized use, and statutory damages of \$1,000.

Illinois	AI Likeness	Digital Voice and Likeness Protection Act	HB 4762	August 9, 2024	• Makes any provision in an agreement for the performance of personal or professional services unenforceable where: - The provision allows for the creation and use of a digital replica of the individual’s voice or likeness in place of work the individual would otherwise have performed in person; - The provision does not include a reasonably specific description of the intended uses of the digital replica; and - The individual was not represented (i) by legal counsel or (ii) by a labor union.	Unenforceability of a violating contractual provision.
Illinois	AI Healthcare	The Wellness and Oversight for Psychological Resources Act	HB1806	August 1, 2025	• Solely permits the use of AI tools or systems by a licensed professional where they are used to assist in providing administrative support or supplementary support in therapy or psychotherapy services and the licensed professional maintains full responsibility for all interactions, outputs, and data use associated with the system and satisfies the other requirements of the Act. • Prohibits licensed professionals from using AI to assist in providing supplementary support in therapy or psychotherapy where the client's therapeutic session is recorded or transcribed unless the patient is informed in writing of it's use and purpose and provides consent. • Prohibits licensed professionals from allowing AI to make independent therapeutic decisions; directly interact with clients in any form of therapeutic communication; generate therapeutic recommendations or treatment plans without review and approval; or detect emotions or mental states.	Up to \$10,000 per violation.
Illinois	User-Facing AI	The Wellness and Oversight for Psychological Resources Act	HB1806	August 1, 2025	• Prohibits any individual or entity from providing, advertising, or otherwise offering therapy or psychotherapy services, including through the use of Internet-based artificial intelligence, to the public unless the therapy or psychotherapy services are conducted by an individual who is a licensed professional. • Exceptions are provided for religious counseling, peer support, and self-help materials and educational resources that are available to the public and do not purport to offer therapy or psychotherapy services.	Up to \$10,000 per violation.
Illinois	AI in Employment	Amendment to the Illinois Human Rights Act	HB 3773	January 1, 2026	• Amends the Illinois Human Rights Act to make it a civil rights violation for an employer to use AI with respect to recruitment, hiring, promotion, renewal of employment, selection for training or apprenticeship, discharge, discipline, tenure, or the terms, privileges, or conditions of employment: - Without notifying employees when using AI for these purposes; or - In a manner that has the effect of subjecting employees to discrimination on the basis of protected classes (or zip code used as a proxy for protected classes). Forthcoming rules will clarify the circumstances and conditions that require notice, the time period for providing notice, and the means for providing notice.	Enforced under the Illinois Human Rights Act.
Indiana	AI Intimate Images	Amendment of Indiana Law Governing Distribution of Intimate Images	HB 1047	March 12, 2024	• Extends prohibitions on the distribution of intimate images to include computer generated images, including images of an individual created or modified by means of a computer software program, artificial intelligence, application, or other design editing tools.	Existing criminal penalties apply.
Indiana	Automated Decision-Making	Indiana Consumer Data Protection Act	Ind. Code. §24-15-1	January 1, 2026	• Provides consumers the right to opt-out of any form of solely automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health or health records, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment, criminal justice, employment opportunities, health care services, or access to basic necessities like food and water). • Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.

Iowa	AI CSAM	Sexual Exploitation of a Minor	Iowa Code § 728.12	July 1, 2024	• Updates the sexual exploitation laws to define a "visual depiction of a minor" to include any visual depiction that has been created, adapted, or modified to give the appearance that an identifiable minor is engaged in a prohibited sexual act or the simulation of a prohibited sexual act. • Updates the sexual exploitation laws to define an "identifiable minor" as a person who was a minor at the time the visual depiction was created, adapted, or modified, or whose image as a minor was used in creating, adapting, or modifying the visual depiction and is recognizable as an actual person by the person's face, likeness, or other distinguishing features.	Existing criminal penalties apply.
Iowa	AI Intimate Images	Harassment	Iowa Code § 708.7	July 1, 2024	• Updates the offense of harassment to provide that the dissemination, publication, distribution, or posting of a visual depiction showing "another person" in a state of full or partial nudity or engaged in a sex act includes an individual, recognizable by their face, likeness, or other distinguishing features, whose image is used to create, adapt, or modify a visual depiction to depict that other person in the manner described.	Existing criminal penalties apply.
Kansas	AI in Government	AI Platforms of Concern	SB 2313	April 8, 2025	• Prohibits the use of an AI platform of concern (including DeepSeek) by a state agency.	N/A
Kentucky	AI CSAM	Amendment to CSAM Law	HB 207	March 28, 2024	• Expands covered images under the Kentucky CSAM statutes to include "any visual depiction" that "has been created, adapted, or modified by a computer to appear to be an identifiable person." • Creates an exception under CSAM prosecutions to the "identifiable person" standard under which the Commonwealth need not prove "the actual identity or age of the minor, or that the minor actually exists."	Existing criminal and civil penalties apply.
Kentucky	AI Intimate Images	Amendment to Intimate Images law	HB 207	March 28, 2024	• Expands covered images under the Kentucky AI intimate images statute to include "any visual depiction" that "has been created, adapted, or modified by a computer to appear to be an identifiable person."	Existing criminal and civil penalties apply.
Kentucky	AI in Government	Government Use of AI Law	KRS 42.720 - 42.742	December 1, 2025	• Requires the Commonwealth Office of Technology to create an Artificial Intelligence Governance Committee to govern the use of AI systems by government agencies. • Gives the Commonwealth Office of Technology the powers to establish, publish, maintain, and implement comprehensive policy standards and procedures for the responsible, ethical, and transparent use of generative artificial intelligence systems and high-risk artificial intelligence systems by departments, agencies, and administrative bodies. • Requires government agencies to disclose to the public, through clear and conspicuous disclaimer, when AI systems are used for certain purposes. • Requires government agencies to disclose certain information and make available options for individuals to appeal when an AI system is used to make external decisions about them.	N/A
Kentucky	AI in Political Advertising	AI Electioneering Communications	KRS 117.001	December 1, 2025	• Any candidate for any elected office whose appearance, action, or speech is altered through the use of synthetic media in an electioneering communication may seek injunctive or other equitable relief against the sponsor of the electioneering communication requiring that the communication includes a disclosure that is clear and conspicuous and included in, or alongside and associated with, the content in a manner that is likely to be noticed by the user.	Injunctive or other equitable relief, plus attorney's fees and costs.
Kentucky	Automated Decision-Making	Kentucky Consumer Data Protection Act	Ky. Rev. Stat. § 367.3611 et seq.	January 1, 2026	• Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person's economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment, criminal justice, employment opportunities, healthcare services, or access to basic necessities, like food and water). • Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.

Louisiana	AI Intimate Images	Louisiana Deepfake Law	14 La. Rev. Stat. Ann. § 73.13	August 1, 2023	• Makes it unlawful for any person who, with knowledge that the material is a deepfake that depicts another person, without consent of the person depicted, engaging in sexual conduct, knowingly advertises, distributes, exhibits, exchanges with, promotes, or sells any sexual material.	Imprisonment for 5 – 30 years and a fine of not more than \$50,000.
Louisiana	AI CSAM	Louisiana Deepfake Law	14 La. Rev. Stat. Ann. § 73.13	August 1, 2023	• Makes it unlawful for any person who, with knowledge that the material is a deepfake depicting a minor, knowingly creates or possesses material that depicts a minor engaging in sexual conduct.	Imprisonment for 5 – 30 years and a fine of not more than \$50,000.
Louisiana	AI Intimate Images	Louisiana AI Intimate Image Law	14 La. Rev. Stat. Ann. § 73.14	August 1, 2024	• Makes it unlawful for any person, with the intent to coerce, harass, intimidate, or otherwise act maliciously, to disseminate or sell any video or still image created by AI that depicts another person intimately when the person disseminating the video or still image knows or has reason to know that he is not licensed or authorized to do so.	Up to 6 months imprisonment and/or \$750 fine.
Maine	User-Facing AI	Communications with Consumers via AI	10 MRSA c. 239	September 24, 2025	• Prohibits any person from using an AI chatbot or any other computer technology to engage in trade and commerce with a consumer in a manner that may mislead or deceive a reasonable consumer into believing that the consumer is engaging with a human unless the consumer is notified in a clear and conspicuous manner that the consumer is not engaging with a human being.	Constitutes a violation of the Maine Unfair Trade Practices Act.
Maryland	AI CSAM	Amendment to the Maryland CSAM Statute	MD. Code., Crim. Law 11-208	October 1, 2023	• Expands the definition of CSAM to include a computer generated image that is indistinguishable from an actual and identifiable child under the age of 16.	Existing criminal penalties apply.
Maryland	AI in Government	Maryland AI Governance Act of 2024	SB 818	July 1, 2024	• Requires each unit of Maryland state government to conduct an inventory of high-risk AI systems. • Requires each unit of Maryland state government to conduct annual impact assessments of high-risk AI systems. • Requires the Maryland Department of Information Technology to develop policies and procedures for the deployment, use, and assessment of high-risk AI systems.	N/A
Maryland	Automated Decision-Making	Maryland Online Data Privacy Act	Md. Code Ann. § 14-4601 et seq.	October 1, 2025	• Provides consumers the right to opt-out of any form of solely automated processing of personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person’s economic situation, health, demographic characteristics, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, education enrollment or opportunity, criminal justice, employment opportunities, health care services, or access to essential goods or services). • Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	\$10,000 per violation; \$25,000 for repeating the same violation.

Maryland	AI Healthcare	AI Utilization Review	Md. Code Ann., Ins. §§ 15-10A-06, 15-10B-05.1	October 1, 2025	- Requires insurers, nonprofit health service plans, health maintenance organizations, dental plan organizations, and any other persons that provide health benefit plans subject to regulation by MD to submit to the Commissioner on a quarterly basis certain information relating to claims, including the number of adverse decisions by the carrier and whether an artificial intelligence, algorithm, or other software tool was used in making the adverse decision. - Further requires such covered entities to ensure that: - AI systems base their determinations on relevant clinical information and not solely on a group dataset; - Any criteria or guidelines for using an AI system complies with these requirements; - An AI system does not replace the role of a health care provider in the determination process under § 15-10B-07 (setting forth adverse decision procedures); - Use of AI does not result in unfair discrimination, and is otherwise fairly and equitably applied; - AI systems are open to inspection for audit or compliance reviews by the Commissioner; - Written policies and procedures are included in the utilization plan, including how an AI system will be used and what oversight will be provided;- The performance, use and outcomes of AI are reviewed and revised, if necessary and at least on a quarterly basis, to maximize accuracy and reliability; - Patient data is not used beyond its intended and state purpose, consistent with HIPAA; and - An AI system does not directly or indirectly cause harm to an enrollee, nor deny, delay or modify health care services.	Existing enforcement mechanism by the Maryland Insurance Commissioner apply.
Massachusetts	AI Intimate Images	Amendment to the Massachusetts Intimate Images Law	HB 4744	June 20, 2024	Expands the scope of the non-consensual dissemination of intimate images statute to include “material produced by digitization” or the “creation or alteration of visual material . . . through the use of computer-generated images, in a manner that would falsely appear to a reasonable person to be an authentic representation of the person depicted.”	Existing criminal penalties apply.
Michigan	AI in Political Advertising	AI Political Disclaimer Law	HB 5141	February 13, 2024	Requires political advertisements generated in whole or substantially by artificial intelligence (whether communicated by phone, radio or print) to contain appropriate disclaimers.	Not specified.
Michigan	AI in Political Advertising	AI Political Deepfake Law	HB 5144	July 1, 2024	Prohibits any person within 90 days of an election from distributing materially deceptive media (including AI-generated content) that the person knows falsely represents a depicted individual and intends the distribution to harm the reputation or electoral prospects of a candidate in an election or to change the voting behavior of electors in an election by causing them to believe the deception is accurate (unless an appropriate disclaimer is provided).	Imprisonment, injunctive relief and fines up to \$1,000.
Minnesota	AI Intimate Images	Non-Consensual Dissemination of a Deepfake	HF 1370	August 1, 2023	Makes non-consensual dissemination of a deep fake a civil offense when the deepfake realistically depicts an intimate part of the non-consenting individual or the non-consenting individual engaging in a sexual act. The act applies to an individual who can be identified either by their features or from personal information displayed in connection with the deepfake.	Civil penalty of up to \$100,000.00, and injunctive relief, including up to a \$1000 daily fine for failure to comply.
Minnesota	AI in Social Media & Online Platforms	Prohibiting Social Media Manipulation Act	SF 4097	July 1, 2025	Imposes obligations on certain social media companies to provide transparency regarding the company’s algorithmic ranking system through a public and conspicuous post on its website (including how the company’s assessments of the quality of content and users’ expressed preference regarding content are weighted in relation to other signals in the system).	Not specified.

Minnesota	Automated Decision-Making	Minnesota Consumer Data Privacy Act	Minn. Stat. § 325O et seq.	July 31, 2025	- Provides consumers the right to opt-out of any form of automated processing of personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health care services, or access to essential goods or services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. - Provides consumers the right to question the result of such automated processing, to be informed of the reason that the process resulted in the decision, and, if feasible, to be informed of what actions the consumer might have taken to secure a different decision and the actions that the consumer might take to secure a different decision in the future. - Provides consumers the right to review the consumer’s personal data used for such automated processing and, if the decision was based upon inaccurate personal data, the right to have the data corrected and the decision reevaluated based upon the corrected data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.
Minnesota	AI CSAM	Amendment to the Minnesota CSAM Statute	HF2432	August 1, 2025	Expands the definition of CSAM to include a computer generated image that depicts an individual indistinguishable from an actual minor created by the use of generative AI or other computer technology capable of processing and interpreting specific data inputs, commonly referred to as prompts, to create a visual depiction of the individual engaging in sexual conduct and is obscene.	Existing criminal penalties apply.
Mississippi	AI in Political Advertising	AI Political Deepfake Law	SB 2577	July 1, 2024	Prohibits any person within 90 days of an election from disseminating a digitization (i.e., an image or audio altered in a realistic manner constituting a deepfake) that the person knows or should have known is disseminated (i) without the consent of the depicted individual and (ii) with the intent to injure a candidate, influence the results of an election or deter any person from voting (unless an appropriate disclaimer is provided).	Imprisonment, injunctive relief and fines up to \$10,000.
Missouri	AI CSAM	Pornography and Related Offenses	R.S.Mo § 573.010	June 6, 2006	Expands the definition of child pornography to include a computer or computer-generated image or picture, whether made or produced by electronic, mechanical, or other means, depicting an actual minor, or an image of an individual indistinguishable from that of a minor, engaging in sexually explicit conduct.	Existing criminal penalties apply.
Montana	Automated Decision-Making	Montana Consumer Data Privacy Act	Montana Code Ann. § 30-14-2801 et seq.	October 1, 2024	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health care services, or access to necessities like food and water). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Does not specify.
Montana	AI in Critical Infrastructure	Right to Compute Act	SB212	April 16, 2025	When critical infrastructure facilities are controlled in whole or in part by a critical AI system, the deployer must develop a reasonable risk management policy that considers guidance and standards in the NIST AI Risk Management Framework, the ISO/IEC 4200 AI standard, or another nationally or internationally recognized risk management framework for AI systems.	N/A

Montana	AI Intimate Images	Montana Explicit Synthetic Media Law	MCA Title 45, Chapter 5, Part 6	May 12, 2025	Prohibits any person from knowingly disclosing (or threatening to disclose) explicit synthetic media without the individual's consent or with the intent to harm the individual.	Fines not to exceed \$1,000 and imprisonment not to exceed 1 year; increasing to \$10,000 and 5 years for a second or subsequent conviction, or \$10,000 and 10 years for explicit synthetic media portraying an individual under 18 years of age.
Montana	AI Intimate Images	Privacy in Communications Law	MCA Section 45-8-213	October 1, 2025	Expands offenses of violating privacy in communications to include possessing and threatening to disclose real or digitally fabricated sexual deepfakes with the purpose of obtaining money or other valuables.	Existing criminal penalties apply.
Montana	AI in Government	Montana Government AI Use Law	HB178	October 1, 2025	- A government entity or state officer may not use an AI system to (1) manipulate a person or group; (2) classify a person or group based on behavior, socioeconomic status, or personal characteristics resulting in unlawful discrimination or a disparate impact based on an actual or perceived differentiating characteristic; (3) maliciously; or (4) surveil public spaces, except to locate a missing, endangered, or wanted person, or in conformity with laws regarding continuous facial surveillance. - If a government entity publishes material produced by an AI system not reviewed by a human, the material must be accompanied by a disclosure that the material was produced by an AI system. - If a government entity or state officer has an interface with the public that uses an AI system, the use of the AI system in the interface must be disclosed. - If an AI system produces a recommendation or decision for a government entity or state officer impacting one's rights or privileges, the recommendation or decision must be reviewed and is subject to rejection or modification by a human.	N/A
Montana	AI in Political Advertising	AI Deepfakes in Elections	SB25	October 1, 2025	- Elections must not pay for or sponsor the production, creation, or distribution of a known election communication that has a deepfake of a candidate or political party on the ballot within 60 days of an election at which a candidate for office appears on the ballot. - This prohibition does not apply to an election communication or electioneering communication that includes a disclosure stating, "This ____ image / audio / video / multimedia) has been <u>significantly</u> edited by <u>artificial intelligence</u> and depicts speech or conduct that falsely appears to be authentic or truthful.	\$5,000 maximum fine and up to 6 mo. imprisonment for the second violation, 2 years for the third violation.
Montana	AI Likeness	Property Right in Use of Names, Voices, and Visual Likenesses	MCA Title 30, Chapter 14, Section 1	January 1, 2026	Makes it unlawful for a person to intentionally publish, perform, distribute, transmit, or make available to the public a digital voice depiction or digital visual depiction for commercial use with actual or specific knowledge that the depiction is a digital voice depiction or digital visual depiction of the individual that was not authorized by the individual or the holder of the individual's property right (as well as distribution of any algorithm, software, tool, or other technology, service, or device with the actual and specific knowledge it will be used for such purposes).	A person who violates is liable to the injured person for the actual damages suffered by the person plus any profits from the unauthorized use of the individual's name, voice, or visual likeness.
Nebraska	Automated Decision-Making	Nebraska Data Privacy Act	LB 1074	January 1, 2026	- Provides consumers the right to opt-out of any form of solely automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual's economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, healthcare services, education enrollment, employment opportunities, criminal justice, or access to basic necessities, such as food and water). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 for each violation.
Nebraska	AI CSAM	Amendment of Nebraska CSAM Laws	LB 383	July 1, 2026	Expands the definition of CSAM to include a computer generated image that is obscene and depicts a child, a person that would appear to a reasonable person to be a child, or a person depicted with physical features of a child.	Existing criminal and civil penalties apply.

Nevada	AI Healthcare	AI for Mental and Behavioral Health Care	Nev. Rev. Stat. Chapter 629	July 1, 2025	- Prohibits a provider of mental and behavioral health care from using an AI system in connection with providing professional mental and behavioral health care directly to a patient. - Expressly permits such a provider to use an AI system to assist the provider with performing tasks for administrative support.	A violation makes such a provider guilty of unprofessional conduct and subject to disciplinary action by the proper authorities.
Nevada	AI in Education	AI for School Counseling	Chapter 391 of NRS	July 1, 2025	- Prohibits public schools from using AI to perform the functions and duties of a school counselor, school psychologist or school social worker. - Requires the Department of Education to develop a policy for the use of AI by a school counselor, school psychologist, school social worker or other educational personnel while providing therapy, counseling or other mental or behavioral health services to pupils.	N/A
Nevada	User-Facing AI	General AI Chatbots and Mental Health Services	Nev. Rev. Stat. Chapter 433	July 1, 2025	- Prohibits an artificial intelligence provider from making available in Nevada an AI system that is specifically programmed to provide a service or experience to a user that would constitute the practice of professional mental or behavioral health care if provided by a natural person. - Prohibits an artificial intelligence provider from making any representation or statement or knowingly causing or programming an AI system to make any representation or statement that indicates the AI system is capable of providing professional mental health care, can be used to obtain professional mental or behavioral health care, or is a provider of mental or behavioral health care, a therapist, a clinical therapist, a counselor, a psychiatrist, a doctor or any other term commonly used to refer to a provider of professional mental health or behavioral health care.	Civil penalty of up to \$15,000.
Nevada	AI in Political Advertising	Nevada AI Political Advertising Law	NRS Chapter 294A.347-95	January 1, 2026	Requires any political campaign communication that includes any form of synthetic media (such as an image, audio recording or video recording of an individual that has been intentionally manipulated with the use of AI to create realistic but false content) to include a disclosure stating that "This (image/video/audio) has been manipulated."	Allows parties to seek injunctive or equitable relief in district court if injured.
New Hampshire	AI in Political Advertising	New Hampshire AI Political Advertising Law	HB 1596	March 27, 2024	Prohibits any person within 90 days of an election from distributing a message created using artificial intelligence that the person knows or should have known is a deepfake of a candidate, election official, or party on the state or local ballot (unless an appropriate disclaimer is provided).	Injunctive or other equitable relief and general or special damages.
New Hampshire	AI in Government	New Hampshire State Agency AI Bill	HB 1688	July 1, 2024	- Prohibits New Hampshire state agencies from: - Classifying persons based on behavior, socio-economic status, or personal characteristics resulting in unlawful discrimination against any individual person or group of persons. - Using real-time and remote biometric identification systems for surveillance in public spaces, such as facial recognition, except by law enforcement with a warrant. - Using deepfakes for any deceptive or malicious purpose. - Requires New Hampshire state agencies to also: - Ensure recommendations or decisions are reviewed by an appropriate human before taking effect where the recommendation or decision is produced by an AI system and cannot be reversed once implemented or executed. - Provide a disclosure that content was generated by AI where the content was produced by generative AI and has not been reviewed and possibly edited by an appropriate human. - Ensure humans interacting with an AI system, directly or indirectly, are informed they are interacting with an AI system.	N/A
New Hampshire	AI Deepfakes	New Hampshire Deepfake Act	HB 1432	January 1, 2025	Makes it unlawful for any person to knowingly create, distribute, or present any likeness in video, audio, or any other media of an identifiable individual that constitutes a deepfake for the purpose of embarrassing, harassing, entrapping, defaming, extorting, or otherwise causing any financial or reputational harm to the identifiable person.	Class B Felony and Civil Damages.

New Hampshire	Automated Decision-Making	New Hampshire Privacy Act	N.H. Rev. Stat. § 507-H:8	January 1, 2025	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of solely automated decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health care services, or access to essential goods or services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$10,000 for each violation.
New Hampshire	User-Facing AI	Responsive Generative Communication Law	New Hampshire Chapter 270:1	January 1, 2026	Prohibits an owner or operator of a computer online service, Internet service, or bulletin board service, including a provider of an AI chat program, whose sole purpose is to provide responsive open-ended generative communication through the use of AI to knowingly direct a communication to a child that has the intent to facilitate, encourage, offer, solicit, or recommend that the child imminently engage in sexually explicit conduct (or the visual depiction of such conduct), the illegal use of drugs / alcohol, acts of self-harm or suicide, or any crime of violence against another person.	An owner or operator of such service shall be liable to a child, or the parent or next friend of the child, for damages proximately caused by a violation of the law, but in no instance liable for an amount less than liquidated damages in the amount of \$1,000 per violation. The AG’s Office may also bring an action for violations.
New Jersey	Automated Decision-Making	New Jersey Data Privacy Act	N.J. Rev. Stat. § 56:8-166.4 et. seq.	January 15, 2025	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, health care services, or access to essential goods or services). - Requires a data protection assessment for certain profiling activities. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$10,000 for the first violation and up to \$20,000 for each subsequent violation.
New Jersey	AI Deepfakes	Establishes criminal penalties for production or dissemination of “deepfakes.”	A3540	April 2, 2025	- Makes it unlawful to create, use or disclose a work of deceptive audio or visual media for the purpose of attempting or furthering the commission of any crime or offense, or with the knowledge that the work is to be used by another for such purpose. - Makes it unlawful for a person to knowingly or recklessly disclose such a work created in violation of the law.	- Chargeable with a crime of up to the third degree. - Up to \$30,000 criminal fine per violation. - Establishes a civil cause of action for the victim to recover actual damages or not less than \$1,000 for each "knowing or reckless" violation.
New Jersey	AI in Employment	Rules Pertaining to Disparate Impact Discrimination (N.J.A.C. 13:16)	N.J.A.C. 13:16	December 15, 2025	Rules (i) clarify the application of existing antidiscrimination laws in several contexts, including for any software, system, process (including AI) that aims to automate, aid, or replace human decision-making relevant to employment ("Automated Employment Decision Tools"), and (ii) provide examples of how the use of automated employment decision tools may have a disparate impact on applicants and employees.	Existing enforcement mechanisms.
New Mexico	AI in Political Advertising	New Mexico Campaign Reporting Act Amendment	N.M. Stat. Ann. § 1-19-26 et seq.	May 15, 2024	Requires any person creating, producing, or purchasing a political advertisement containing AI-generated deepfakes to provide a clear and conspicuous disclaimer that the media has been manipulated or generated by artificial intelligence.	- Up to \$1,000 per violation not to exceed a total of \$20,000. - Misdemeanor for first conviction. - Fourth Degree Felony for second conviction.
New York	AI in Employment	NYC AI Employment Law	(Local Law 144)	January 1, 2023	- Prohibits employers and employment agencies from using an automated employment decision tool to screen a candidate or employee for an employment decision unless the tool has been subject to a recent bias audit and a summary of the audit is made publicly available on the website of the employer / agency. - Requires employers / agencies using automated employment decision tools to notify each candidate that such a tool will be used and provide information about the qualifications and characteristics the tool will use in the assessment, the type of data collected by the tool for the assessment, and the employer’s data retention policy. - Requires employers / agencies using automated employment decision tools to allow a candidate to request an alternative selection process or accommodation.	- Up to \$500 per violation on the first day of violations. - Up to \$1,500 per subsequent violation.

New York	AI Intimate Images	Amendment to the New York Statute Prohibiting Unlawful Dissemination or Publication of Intimate Images	SB1042A	November 28, 2023	Expands the definition of unlawful dissemination or publication of an intimate image to include “deep fake” images created by digitization.	Existing penalties apply.
New York	AI in Political Advertising	Artificial Intelligence Deceptive Practices Act	N.Y. Election Law § 14-106	April 20, 2024	Requires any person that distributes or publishes any political communication that was produced by or includes materially deceptive media (including AI deepfakes) and has actual knowledge that it is materially deceptive to provide proper disclosure.	Injunctive relief.
New York	AI Likeness	Artificial Intelligence Deceptive Practices Act	N.Y. Civ. Rights Law § 50 et seq.	April 20, 2024	Extends New York’s Right of Privacy protecting an individual’s picture, likeness, or voice to also cover AI generated uses of the individual’s picture, likeness or voice.	Varies based on violation.
New York	AI in Government	The LOADinG Act: Legislative Oversight Of Automated Decision-Making in Government Act	S 7543B	December 21, 2024	Imposes several requirements on state agency use of AI and automated decision-making tools, including: - Requires state agencies to publish an online list of the automated decision-making tools they use. - Requires state agencies to conduct, submit and publish an impact assessment for the lawful application and use of automated decision-making tools. - Requires state agencies and any entity acting on their behalf to operationalize meaningful human review of automated decision-making tools that are used to (i) allocate public assistance benefits, or (ii) which may otherwise impact an individual's rights, safety, or welfare. Such tools must also be subject to an initial impact assessment to be repeated at least every two years. - Prohibits state agencies from using automated decision-making systems to make internal employment decisions if they may result in discharge, displacement, loss of position, or impairment of collective bargaining agreements.	N/A
New York	AI Likeness	Contracts for the Creation and Use of Digital Replicas	General Obligations CHAPTER 24-A, ARTICLE 5, TITLE 3	January 1, 2025	- Makes any provision in an agreement for the performance of personal or professional services unenforceable where: - The provision allows for the creation and use of a digital replica of the individual’s voice or likeness in place of work the individual would otherwise have performed in person; - The provision does not include a reasonably specific description of the intended uses of the digital replica; and - The individual was not represented (i) by legal counsel or (ii) by a labor union.	Unenforceability of a violating contractual provision.
New York	AI Likeness	New York State Fashion Workers Act	S 9832	June 19, 2025	Requires model management companies and those who receive modeling services to obtain clear written consent, separately from any representation agreement, for the creation or use of a model's digital replica, detailing the scope, purpose, rate of pay, and duration of such use.	Up to \$3,000 for the first violation; up to \$5,000 for subsequent violations.
New York	AI in Government	Automated Employment Decision-Making in State Government	A433	July 1, 2025	- Any state agency that utilizes an automated employment decision-making tool shall publish a list of such automated employment decision-making tools on such state agency's website. - The state agency shall maintain an inventory of state agency artificial intelligence systems.	None specified.
New York	User-Facing AI	Artificial Intelligence Companion Models	New York General Business Law Article 47	November 5, 2025	- Prohibits any operator from providing an AI companion unless that AI companion contains a protocol to take reasonable efforts for detecting and addressing suicidal ideation or self-harm expressed by a user to the AI companion, including a notification to the user that refers them to crisis service providers. - Operators must clearly and conspicuously display a notification at the beginning of any AI companion interaction, which need not exceed once per day and at least every three hours for continuing interactions, which states verbally or in writing that the user is not communicating with a human.	Up to \$15,000 per day in violation.
New York	Algorithmic Pricing	New York Algorithmic Pricing Disclosure Act	New York General Business Law Article 22-A, § 349-A	November 10, 2025	Requires any entity that sets the price of goods or services using personalized algorithmic pricing and that advertises, promotes, labels or publishes a statement, display, image, offer or announcement of personalized algorithmic pricing to a consumer in New York, using personal data specific to the consumer, to include a clear and conspicuous disclosure that states: "THIS PRICE WAS SET BY AN ALGORITHM USING YOUR PERSONAL DATA."	Up to \$1,000 per violation (after a preliminary cease-and-desist notice).

New York	AI Likeness	Amendment to Deceased Personality Protections	S8391	December 11, 2025	• Makes it unlawful for a person to use a deceased performer's digital replica in an audiovisual work, sound recording, or live performance of a musical work without appropriate consent. • A "digital replica" is defined as a newly created, computer-generated, highly realistic electronic representation that is readily identifiable as the voice or visual likeness of an individual that is embodied in a sound recording, image, audiovisual work, including an audiovisual work that does not have any accompanying sounds, or transmission in which: (I) the actual individual did not actually perform or appear; or (II) the actual individual did perform or appear, but the fundamental character of the performance or appearance has been materially altered. • A "digital replica" does not include the electronic reproduction, use of a sample of one sound recording or audiovisual work into another, remixing, mastering, or digital remastering of a sound recording or audiovisual work authorized by the copyright holder.	Greater of \$2,000 or the compensatory damages suffered by the injured party and any profits from the unauthorized use that are attributable to such use and are not taken into account in computing the compensatory damages.
New York	Algorithmic Pricing	New York Landlord Algorithmic Pricing Law	New York General Business Law Article 22,§ 340-B	December 15, 2025	• Makes it unlawful for a person or entity to knowingly or with reckless disregard facilitate an agreement between or among two or more residential rental property owners or managers to not compete with respect to residential rental dwelling units, including by operating or licensing a software, data analytics service, or algorithmic device that performs a coordinating function on behalf of or between and among such residential rental property owners or managers.	Class E Felony For a corporation, a fine not exceeding \$1 million. For an individual, a fine not exceeding \$100,000 or imprisonment for not longer than four years (or both).
New York	AI in Government	Government-Related AI Employment Protections	S8831	February 13, 2026	• Amends the current state education, state technology, and state civil service laws to protect employees from artificial intelligence systems affecting their rights under collective bargaining agreements, causing job loss, transferring duties, or reducing work hours or benefits.	None Specified
New York	AI Transparency	Synthetic Performer Disclosures	S8420A	June 9, 2026	• Requires any person who for any commercial purpose produces or creates an advertisement respecting any property or service in which they deal to conspicuously disclose when a "synthetic performer" is used in an advertisement. • Defines "synthetic performer" to mean "a digitally created asset created, reproduced, or modified by computer, using generative artificial intelligence or a software algorithm, that is intended to create the impression that the asset is engaging in an audiovisual and/or visual performance of a human performer who is not recognizable as any identifiable natural person."	\$1,000 for a first violation and \$5,000 for any subsequent violation.

New York	Frontier or General-Purpose AI	The Responsible AI Safety and Education (RAISE) Act	New York General Business Law, Article 44-B	January 1, 2027	Requires developers who have trained, or initiated the training of, a frontier model and, individually or together with its affiliates, had annual gross revenues in excess of \$500 million in the preceding calendar year (i.e., "large frontier developers") to comply with obligations imposed on frontier models that are developed, deployed, or operated in whole or in part in New York, including: • Writing, implementing, complying with and publishing a frontier AI framework detailing how the large frontier developer handles certain risk-related and other expectations. • Publishing a transparency report providing information about the developer and the model. • Filing a disclosure statement with the department of financial services. • Retaining an unredacted copy of any of the documents above when the published version is redacted for permitted reasons. • Transmitting to the department of financial services a summary of any assessment of catastrophic risk resulting from internal use of a frontier model. • Reporting any critical safety incident pertaining to its frontier model to the department of financial services within 72 hours of learning of the incident or of facts sufficient to establish a reasonable belief that a critical safety incident has occurred (within 24 hours to an authority if the incident poses an imminent risk of death or serious physical injury). • Refraining from making a materially false or misleading statements about catastrophic risk from its frontier models, its management of catastrophic risk, or its frontier AI framework. "Frontier model" is defined to mean an AI model that (a) is trained on a broad data set, designed for generality of output, and adaptable to a wide range of distinctive tasks (i.e., a "foundational model"), and (b) was trained using a quantity of computing power greater than 10^26 integer or floating-point operations.	Up to \$1million for a first violation and \$3 million for subsequent violations.
North Carolina	AI CSAM	Amendment of North Carolina CSAM Laws	HB 591	December 1, 2024	• Expands the scope of existing child pornography statutes to include digital or computer-generated visual depictions or representations created, adapted, or modified by technological means, such as algorithms or artificial intelligence.	Existing criminal penalties apply.
North Carolina	AI Intimate Images	North Carolina Intimate Images Laws	HB 591	December 1, 2024	• Makes it unlawful to intentionally threaten to disclose a sexual private image (including an AI generated image), or to decline to delete, remove, or retract a previously disclosed sexual private image, of an individual in order to compel or attempt to compel the person to act in order to obtain something of value or additional private images (i.e., sexual extortion). • Extends prohibitions on the distribution of intimate images to include distribution of AI generated intimate images.	Various criminal charges.
North Dakota	AI in Government	North Dakota Unmanned Aerial Vehicle and Robot Law	North Dakota Century Code 29-29.4-01 to 06	August 1, 2025	• Extends restrictions on the use of information obtained from an unmanned aerial vehicle as evidence in a an affidavit of probable cause or prosecution to also include information gathered by a "robot" – which means a powered artificial machine or system that upon activation will operate in whole or in part autonomously to perform physical tasks or decision-making without real-time human control. • Restricts law enforcement from authorizing the use of a robot or unmanned aerial vehicle to deploy a weapon or use force.	N/A
North Dakota	AI Robots	North Dakota Harassment Law	North Dakota Century Code Section 12.1-17-07	August 1, 2025	• Makes it a crime to use a "robot" to engage in offensive conduct with no legitimate purpose. • "Robot" means an artificial object or system that senses, processes, and acts using technology, including the associated elements, communication links, and artificial intelligence (includes remotely piloted aircraft).	Misdemeanor.
North Dakota	AI Robots	North Dakota Stalking Law	North Dakota Century Code Section 12.1-17-07.1	August 1, 2025	• Extends traditional stalking crimes to similar activity carried out by a "robot" (e.g., unauthorized tracking of a person's movements / location or other course of conduct that frightens, intimidates, or harasses a person and serves no legitimate purpose). • "Robot" means an artificial object or system that senses, processes, and acts using technology, including the associated elements, communication links, and artificial intelligence (includes remotely piloted aircraft).	Misdemeanor or felony.

North Dakota	AI in Political Advertising	AI Political Advertising Disclaimer Law	ND Century Code, Chapter 16.1-10	August 1, 2025	Requires the following disclaimer: "THIS CONTENT GENERATED BY ARTIFICIAL INTELLIGENCE" when taking any action for a political purpose, including communication and political advertising in support of or opposition to a candidate, political committee, or a political party, or for the purpose of promoting passage or defeat of initiated or referred measures or petitions containing images, graphics, videos, audio, text, or other digital content created in whole or in part with the use of AI to visually or audibly impersonate a human.	N/A
North Dakota	AI CSAM	AI CSAM Amendments	North Dakota Century Code Section 12.1-27.2-01 and 12.1-27.2-04.1	August 1, 2025	Amends North Dakota's CSAM laws to apply to computer-generated images that include sexual conduct by a minor and revised the definition of a "minor" under the law to include "a computer-generated image, used, created, adapted, altered, or modified to appear to depict an individual under eighteen years of age by face, likeness, or other distinguishing characteristics."	Class B or C Felony
North Dakota	AI Intimate Images	An Act Relating to Sexually Expressive Images	N.D. Cent. Code § 12.1-27.1-01	August 1, 2025	Amends North Dakota's non-consensual "sexually expressive images" law to include "real, altered, or computer-generated photographs or visual representations," as well as to add a private right of action.	- Class A or B misdemeanor punishable by up to 1 year in jail and/or \$3,000. - Victims may also sue for damages up to \$10,000 per defendant, plus attorney’s fees, profits, and injunctive relief.
Oklahoma	AI CSAM	Amendment to Oklahoma CSAM Laws	HB 3642	November 1, 2024	Extends the CSAM statute to encompass any depiction of a child that has been adapted, altered or modified so that the child depicted appears to be engaged in any act of sexually explicit conduct; or any visual depiction that appears to be a child, regardless of whether the image is a depiction of an actual child, a computer-generated image, or an image altered to appear to be a child, engaged in any act of sexually explicit conduct, and such visual depiction is obscene.	Existing criminal penalties apply.
Oklahoma	AI Intimate Images	Amendment of Oklahoma Law Governing Distribution of Intimate Images	Section 1040.13b	November 1, 2025	Extends prohibitions on the nonconsensual dissemination of private sexual images to include artificially generated sexual depictions of another person disseminated without the depicted person's consent and with the intent (or reckless disregard) to harass, annoy, threaten, alarm, or cause physical, emotional, reputational, or economic harm to the depicted person.	Misdemeanor charge and up to \$1,000 fine.
Oregon	AI in Political Advertising	Use of AI in Campaign Communications Law	SB 1571	March 27, 2024	Requires any political campaign communication that includes any form of synthetic media (such as an image, audio recording or video recording of an individual that has been intentionally manipulated with the use of AI to create realistic but false content) to include a disclosure stating that the image, audio recording or video recording has been manipulated.	Enjoinment and a civil penalty of not more than \$10,000.
Oregon	Automated Decision-Making	Oregon Consumer Privacy Act	SB 619	July 1, 2024	- Provides consumers the right to opt-out of any form of automated processing of personal data for the purpose of evaluating, analyzing, or predicting an identified or identifiable consumer’s economic circumstances, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal effects or effects of similar significance (i.e., the provision or denial of financial or lending services, housing, insurance, enrollment in education or educational opportunity, criminal justice, employment opportunities, health care services, or access to essential goods and services). - Imposes additional processing restrictions for such automated processing of children’s personal data (under the age of 16). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.
Pennsylvania	AI CSAM	Amendment of Pennsylvania CSAM Laws	SB 1213	December 28, 2024	- Expands the scope of existing child pornography statutes to include artificially generated child sexual abuse material. - Updates the term “child pornography” to “child sexual abuse material.”	Existing criminal penalties apply.
Pennsylvania	AI Intimate Images	Amendment of Pennsylvania Intimate Images Laws	SB 1213	December 28, 2024	Extends prohibition on the distribution of intimate images to include distribution of AI generated intimate images.	Existing criminal penalties apply.

Rhode Island	AI in Political Advertising	Deceptive and Fraudulent Synthetic Media in Election Communications	General Laws, Title 17-30-1 to 4	July 2, 2025	Prohibits certain persons from distributing synthetic media that the person knows or should know is deceptive and fraudulent deepfake of a candidate for elected office within 90 days of an election unless the synthetic media message includes a clear and conspicuous disclosure stating that the media has been manipulated or generated by AI.	Provides possible injunctive or other equitable relief from injuries.
Rhode Island	Automated Decision-Making	Rhode Island Data Transparency and Privacy Protection Act	R.I. Gen. Law § 6-48.1-1 et seq.	January 1, 2026	- Provides consumers the right to opt-out of any form of solely automated processing performed on personal information to evaluate, analyze, or predict personal aspects related to an identified or identifiable individual’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of solely automated decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, healthcare services, or access to essential goods or services). - Requires a data protection assessment of each processing activity involving such automated processing of personal data in certain circumstances. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$10,000 per violation.
South Carolina	AI in Real Estate	Real Estate AI Responsibility Law	S.C. Code Ann. § 40-57-820	May 21, 2024	Makes licensed real estate professionals responsible for any and all work product produced with the assistance of artificial intelligence, machine learning, or similar programs.	Various disciplinary actions and penalties.
South Dakota	AI CSAM	Amendment of South Dakota CSAM Laws	SB 79	February 12, 2024	Expands the scope of existing child pornography statutes to include matter that is digitally altered or generated by the use of AI.	Existing criminal penalties apply.
South Dakota	AI in Political Advertising	An Act to Prohibit the Use of a Deepfake to Influence an Election	SB164	July 1, 2025	- Prohibits the distribution of AI-generated deepfakes with the intent to injure a candidate within 90 days of an election. - Provides a safe harbor from liability where the deepfake includes a disclosure stating "This (image/video/audio) has been manipulated or generated by artificial intelligence." The disclosure must also meet certain formatting / delivery requirements.	- Class 1 Misdemeanor. - Injunctive or other equitable relief. - Damages, reasonable costs and attorney fees, and any other relief the court deems proper in a suit by the candidate or other individual depicted.
Tennessee	AI Likeness	Ensuring Likeness, Voice, and Image Security (ELVIS) Act of 2024	Tennessee Code Annotated, Section 47-25-1101	July 1, 2024	- Provides that every individual has a property right in the use of their name, photograph, voice, or likeness in any medium and in any manner. - Establishes a civil cause of action if a person knowingly uses or infringes upon the use of an individual's name, photograph, voice, or likeness in any medium, in any manner, for purposes of advertising, fundraising, or merchandising without consent. - Establishes a civil cause of action if a person publishes, performs, distributes, transmits, or otherwise makes available to the public an individual's voice or likeness with knowledge that the individual has not provided authorization for such use. - Establishes a civil cause of action if a person distributes, transmits, or otherwise makes available an algorithm, software, tool, or other technology, service, or device, the primary purpose or function of which is the production of an individual's photograph, voice, or likeness without authorization.	Private right of action.
Tennessee	AI CSAM	Amendment of Tennessee CSAM Laws	HB 2163	July 1, 2024	Expands the scope of existing child pornography statutes to include matter that is digitally altered or generated by the use of AI.	Existing criminal penalties apply.
Tennessee	Automated Decision-Making	Tennessee Information Protection Act	Tenn. Code. Ann. § 47-18-3301	July 1, 2025	- Provides consumers the right to opt-out of any form of solely automated processing performed on personal information to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial or lending services, housing, insurance, education enrollment or opportunity, criminal justice, employment opportunities, healthcare services, or access to basic necessities, like food and water). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.

Texas	AI CSAM	Amendment of Texas CSAM Laws	HB 2700	September 1, 2023	Expands the scope of existing child pornography statutes to include matter that is digitally altered or generated by the use of AI.	Existing criminal penalties apply.
Texas	AI Intimate Images	Unlawful Distribution of Sexually Explicit Videos	SB 1361	September 1, 2023	Makes it a criminal offense to distribute deepfakes depicting a person with intimate parts exposed or engaged in sexual conduct without that person’s consent.	Class A misdemeanor.
Texas	Automated Decision-Making	Texas Data Privacy and Security Act	Tex. Bus & Com. Code § 541.051(b)(5)(C)	July 1, 2024	- Provides consumers the right to opt-out of any form of solely automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial and lending services, housing, insurance or health care services, education enrollment, employment opportunities, criminal justice, or access to basic necessities like food and water). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.
Texas	AI in Government	Act Relating to the Regulation and Use of AI by Governmental Entities	Chapter 2054, Government Code, Subchapter S	September 1, 2025	- Requires Texas state agencies to inventory their AI systems and conduct a review of the deployment and use of heightened scrutiny AI systems. - Requires the creation for the state-wide establishment of an AI system code of ethics for use by state agencies and local governments that procure, develop, deploy, or use AI systems, which shall be adopted by the state agencies and local governments. - Requires the development of minimum risk management and governance standards for the development, procurement, deployment, and use of heightened scrutiny AI systems by a state agency or local government. - Requires state agencies to conduct assessments when deploying or using a heightened scrutiny AI system. - Requires state agencies to clearly disclose to an individual interacting with a public-facing AI system that they are interacting with an AI system, unless a reasonable person would know they are interacting with an AI system. - Requires state agencies to provide certain standardized notices of AI systems use that is public-facing or that is a controlling factor in a consequential decision.	The attorney general can enjoin a violation of the law and/or void a contract with a vendor causing such a violation.
Texas	AI CSAM	Amendment to the CSAM Statutes	SB 1621	September 1, 2025	Expands the offenses of possession of child pornography, electronic transmission of certain visual material depicting a minor, and possession or promotion of lewd visual material depicting a child to include AI-generated images.	Felony offense.
Texas	AI CSAM	Visual Material Appearing to Depict a Child	SB 20	September 1, 2025	Creates a felony offense of possessing, accessing, or promoting obscene visual material of a child, regardless of whether the image is an actual child or created using artificial intelligence, or uses an image of a child with intent to train artificial intelligence to produce material constituting child pornography.	Felony offense.
Texas	AI Deepfakes	Financial Abuse Using Artificially Generated Media or Phishing	SB 2373	September 1, 2025	- Prohibits any person from intentionally or knowingly disseminating artificially generated media or a phishing communication for the purpose of financial exploitation. - Provides that a person commits an offense if the person knowingly engages in financial abuse through the use of artificially generated media disseminated to another person or by deceiving or manipulating another person into providing personal, financial, or identifying information through e-mail, electronic communication, or other digital means.	- Actual damages, damages for mental anguish, and the defendant's profits, as well as court costs and reasonable attorney's fees. - Civil penalty not to exceed \$1,000 per day the media or communication is disseminated. - Criminal penalties and imprisonment can also apply.
Texas	AI Healthcare	Artificial Intelligence in Electronic Health Record	SB 1188	September 1, 2025	- Grants health care practitioners the ability to use artificial intelligence for diagnostic purposes, including using artificial intelligence for recommendations on a diagnosis or course of treatment based on a patient’s medical record, if given conditions are met. - Provides a health care practitioner using artificial intelligence for diagnostic purposes must disclose the practitioner ’s use of that technology to the practitioner’s patients.	Injunctive relief and civil penalties of up to \$5,000 for each violation that is committed negligently in a single year, \$25,000 for each violation that is committed knowingly or intentionally in a single year, and \$250,000 for each violation in which the covered entity knowingly or intentionally used protected health information for financial gain.

Texas	AI Healthcare	Use of Automated Decision System for Adverse Determinations	SB 815	September 1, 2025	Amends the Insurance Code to prohibit a utilization review agent from using an automated decision system, including certain AI systems, to make, wholly or partly, an adverse determination (i.e., a determination by a utilization review agent that health care services provided or proposed to be provided to a patient are not medically necessary or appropriate or are experimental or investigational).	Sanctions, cease and desist orders, and administrative penalties under the Insurance Code.
Texas	AI in Social Media & Online Platforms	Unlawful Production or Distribution of Certain Sexually Explicit Material	HB 441	September 1, 2025	Establishes liability for owners of internet websites, artificial intelligence applications, and payment processors involved in artificial sexual material under certain conditions, and requires persons who own an Internet website or application to make available on the website or application an easily accessible system that allows a person to submit a request for the removal of such artificial material.	Establish the criminal penalties; Class B or Class A misdemeanor or a third degree felony.
Texas	AI Intimate Images	Unlawful Production or Distribution of Certain Sexually Explicit Material	HB 441	September 1, 2025	- Expands what constitutes an unlawful production or distribution of certain sexually explicit visual material to include media that appears to depict a person with certain forms of intimate parts or performing certain actions without the person's consent. - Establishes liability for owners of internet websites, artificial intelligence applications, and payment processors involved in such artificial sexual material under certain conditions, and requires persons who own an Internet website or application to make available on the website or application an easily accessible system that allows a person to submit a request for the removal of such artificial material.	Establish the criminal penalties; Class B or Class A misdemeanor or a third degree felony.
Texas	AI Intimate Images	AI Sexual Material Harmful to Minors	HB 581	September 1, 2025	- Commercial entities that operate a website with a publicly accessible tool for creating artificial sexual material harmful to minors, or otherwise makes publicly available an application for creating such material, must use reasonable age verification methods to verify an individual is 18 years of age or older. - Commercial entities providing such a tool or application must also ensure that an individual used as a source for the material is 18 years of age or older and has consented to the use of the individual's face and body as a source for the material.	Civil penalty of up to \$10,000 per day it operates in violation of the age verification requirements or per instance of certain other violations, and up to \$250,000 if a minor accesses sexual material because of a violation.
Texas	Comprehensive AI	Texas Responsible Artificial Intelligence Governance Act (TRAIGA)	HB 149	January 1, 2026	- Clarifies when Texas's biometric privacy law applies to AI training, development, and deployment. - Requires a governmental agency that makes available an AI system intended to interact with consumers to disclose to each consumer, before or at the time of interaction, that the consumer is interacting with an AI system. - Prohibits any governmental entity from using or deploying an AI social scoring system in manner that could result in detrimental or unfavorable treatment or the infringement of anyone's rights. - Prohibits any government entity from developing or deploying an AI system for the purpose of uniquely identifying an individual using biometric data or the gathering of images / media from the Internet or other publicly available source without consent, if doing so would infringe on an individual's rights. - Prohibits any person from developing or deploying an AI system (i) in a manner that intentionally aims to manipulate human behavior in a harmful way, (ii) with the sole intent to infringe or impair an individual's rights, (iii) with the intent to unlawfully discriminate, or (iv) with the sole intent of producing, assisting or aiding in producing, or distributing CSAM.	Subject to right to cure, up to \$12,000 for curable violations, up to \$200,000 for incurable violations, and an additional \$2,000 to \$40,000 per day for continued violations.
Utah	AI Liability	Utah Artificial Intelligence Policy Act	Utah Code § 13-72-301 et seq.	May 1, 2024	Establishes a voluntary program companies can participate in to reduce the regulatory burden relating to the company's development and testing of AI during the company's 12-month participation in the program in exchange for abiding by certain AI-related parameters and information sharing requirements. <i>Set to be repealed on July 1, 2027 (as amended by SB 332)</i>	N/A
Utah	AI Privacy	Utah Artificial Intelligence Policy Act	SB 149	May 1, 2024	Clarifies that data generated by computer algorithms or statistical models that do not contain personal data (i.e., synthetic data) is not "personal data" under the Utah Consumer Privacy Act.	N/A
Utah	AI CSAM	Artificial Pornographic Images Amendments	HB 148	May 1, 2024	Amends the definitions of CSAM to include "computer generated" content.	Existing penalties apply.

Utah	AI CSAM	Sexually Explicit Minor Amendments	HB 238	May 1, 2024	Updates the definition of child sexual abuse material to include “artificially generated and depicts an individual with substantial characteristics of a minor engaging in sexually explicit conduct.”	Existing penalties apply.
Utah	AI Intimate Images	Artificial Pornographic Images Amendments	HB 148	May 1, 2024	Amends the definitions of intimate image and counterfeit intimate images to include “computer generated” content.	Existing penalties apply.
Utah	AI in Political Advertising	Utah Information Technology Act	SB 131	May 1, 2024	Requires any person who uses generative AI to create audio or visual content intended to influence an election or ballot proposition to make clear disclosures including a disclaimer indicating the content is generated by AI.	\$1,000 per violation recoverable by any person bringing a claim against the relevant creator or sponsor of the political content.
Utah	AI Liability	Artificial Intelligence Consumer Protection Amendments	Utah Code § 13-75-102	May 7, 2025	Clarifies that it is not a defense to a violation of Utah's consumer protection law that generative AI made the violative statement, undertook the violative act, or was used in furtherance of the violation.	Existing penalties apply.
Utah	AI Healthcare	AI Applications Related to Mental Health	Utah Code § 13-72a-101	May 7, 2025	- Prohibits the supplier of a mental health chatbot from: - Selling or sharing with any third party any individually identifiable health information of a Utah user or user input of a Utah user (with narrow exception). - Using a Utah user's input to facilitate targeted advertising. - Advertising a specific product or service to a Utah user in a conversation unless an appropriate disclaimer is provided identifying the relevant advertisement and any agreement / sponsorship to promote it. - Requires a mental health chatbot to clearly and conspicuously disclose that it is an AI technology (and not a human) to users before they begin to use the chatbot, upon commencement of any chatbot session (if the user has not accessed the chatbot within the previous 7 days), and whenever a user asks whether they are interacting with AI.	Fines of up to \$2,500 per violation of the law, or \$5,000 per violation of an order issued for a violation of the law.
Utah	User-Facing AI	Artificial Intelligence Consumer Protection Amendments	Utah Code § 13-75-101 to 106	May 7, 2025	- Requires any supplier that uses generative AI to interact with individuals in connection with a consumer transaction to disclose if asked that they are interacting with generative AI and not a human being. - Requires any person providing services in a regulated occupation to prominently disclose when an individual is interacting with generative AI in the provision of regulated services if the use constitutes a high-risk artificial intelligence interaction. - Provides a safe harbor from liability where providing an appropriate disclosure about the use of generative AI proactively. - Makes users of generative AI generally responsible for the impact of the use of the technology by clarifying it is not a defense to the violation of certain laws that generative AI made the violative statement, undertook the violative act, or was used in furtherance of the violation.	Fines of up to \$2,500 per violation of the law, or \$5,000 per violation of an order issued for a violation of the law.
Utah	AI in Government	Law Enforcement Usage of Artificial Intelligence	Utah Code § 53-25-601 to 602	May 7, 2025	- Requires a law enforcement agency to have a policy concerning the agency's use of generative artificial intelligence. - Requires a police report or other law enforcement record to include a disclaimer if the report or record was created wholly or partially by using generative artificial intelligence as well as a certification that it has been reviewed for accuracy.	N/A
Utah	AI Likeness	Unauthorized Artificial Intelligence Impersonation Amendments	Utah Code § 45-3-2 et. seq.	May 7, 2025	- Expands existing "personal identity" protections against abuse to include any simulation, reproduction, or artificial recreation of a person's identity (with some exception). - Makes it unlawful to distribute, sell, or license any technology whose intended primary purpose is the unauthorized creation or modification of content that includes an individual's personal identity for commercial purposes.	Private right of action for injunctive relief, actual damages, exemplary damages, and reasonable attorney's fees and costs.
Vermont	AI in Government	An Act Relating to the Use and Oversight of AI in State Government	H 410	July 1, 2022	- Requires the Agency of Digital Services to conduct an inventory of all the automated decision systems developed, employed, or procured by the Vermont State government. - The act also creates various AI governance functions within the Vermont State government.	None specified.

Vermont	AI Intimate Images	Amendment of non-consensual sexual image dissemination statute	H 878	June 6, 2024	Expands the scope of Vermont’s dissemination of intimate images statute to include media that has been altered “utilizing an image or images of a person, including images other than the person depicted, or computer-generated images.”	Existing penalties apply.
Virginia	AI Intimate Images	Amendment to the Unlawful Dissemination of Images of Another Statute	B 2678	July 1, 2019	Expands the definition of unlawful dissemination of nude or sexually explicit images of another to include persons “whose image was used in creating, adapting, or modifying a videographic or still image with the intent to depict an actual person and who is recognizable as an actual person by the person's face, likeness, or other distinguishing characteristic.”	None specified.
Virginia	AI Healthcare	Hospital / Nursing Home Virtual Assistant Law	Va. Code Ann. § 32.1-127	July 1, 2021	Mandates regulations to be adopted that require each hospital, nursing home, and certified nursing facility to establish and implement policies to ensure the permissible access to and use of an intelligent personal assistant provided by a patient while receiving inpatient services.	None specified.
Virginia	Automated Decision-Making	Virginia Consumer Data Protection Act	Va. Code Ann. § 59.1-577A(A)(5)	January 1, 2023	- Provides consumers the right to opt-out of any form of automated processing performed on personal data to evaluate, analyze, or predict personal aspects related to an identified or identifiable natural person’s economic situation, health, personal preferences, interests, reliability, behavior, location, or movements in furtherance of decisions that produce legal or similarly significant effects concerning the consumer (i.e., the provision or denial of financial and lending services, housing, insurance, education enrollment, criminal justice, employment opportunities, healthcare services, or access to basic necessities like food and water). - Imposes additional consent requirements and processing restrictions for such automated processing of children’s personal data (under the age of 13). - Requires a data protection assessment of each processing activity involving such automated processing of personal data. <i>Other obligations and restrictions may apply depending on the type of data processed.</i>	Up to \$7,500 per violation.
Virginia	AI CSAM	Amendment to CSAM statute	SB 731	July 1, 2024	Clarifies that the definition of CSAM includes computer generated images of minors that do not “actually exist.”	None specified.
Virginia	AI in Government	Artificial Intelligence-Based Tools	Code of Virginia, Section 19.2-11.14	June 6, 2025	- Requires that all decisions related to the pre-trial detention or release, prosecution, adjudication, sentencing, probation, parole, correctional supervision, or rehabilitation of criminal offenders in Virginia must be made by a human decision-maker, even if artificial intelligence-based tools are used to generate recommendations or predictions. - Permits the use of any recommendation or prediction from an AI-based tool to be subject to any challenge or objection permitted by law.	N/A
Washington	AI CSAM	Amendment of Washington CSAM Laws	HB 1999	June 6, 2024	Expands the scope of existing child pornography statutes to include circumstances involving fabricated depictions of an identifiable minor (including such depictions created using AI).	Criminal and civil penalties may apply.
Washington	AI Intimate Images	Amendment of Washington Intimate Image Laws	HB 1999	June 6, 2024	Makes it a criminal offense to knowingly disclose a fabricated intimate image of another person where the person disclosing the image knows or should have known that the depicted person has not consented to the disclosure and knows or reasonably should know that disclosure would cause harm to the depicted person.	Criminal and civil penalties may apply.
West Virginia	AI CSAM	Crimes Against Chastity, Morality and Decency - CSAM	SB 198	July 9, 2025	Expands prohibition on child pornography to include computer-generated child pornography.	Criminal and civil penalties may apply.
West Virginia	AI Intimate Images	Crimes Against Chastity, Morality and Decency - Intimate Images	SB 198	July 9, 2025	Expands prohibition on the distribution of intimate images to include fabricated intimate images created using AI or other computer technology.	Criminal and civil penalties may apply.

Wisconsin	AI in Political Advertising	2023 Wisconsin Act 123	Wis. Stat. § 11.1303	March 23, 2024	Requires any political advertisement that contains express advocacy or issue advocacy, or supports or opposes a referendum, and incorporates audio or video content that is substantially produced in whole or in part by means of generative artificial intelligence to include a disclaimer indicating the content was created in whole or in part with the use of generative AI.	\$1,000 per violation.
Wisconsin	AI CSAM	Amendment to the CSAM Statute	SB 314	October 4, 2024	Criminalizes the possession of a computer generated “depiction of a purported child.”	Class D Felony.
Wisconsin	AI in Real Estate	Advertising Enhanced by Technology Law	Wis. Stat. § 452.136 (1m)	January 1, 2027	Requires a person licensed to do real estate under Wisconsin law to disclose if a real estate advertisement has been altered or modified using technology, including artificial intelligence, to add, remove, or change elements of the property that creates a false or misleading impression of the property.	Suspension or revocation of real estate license and up to \$5,000 per violation.
Wyoming	AI CSAM	Sexual Exploitation of Children	Wy. Code § 6-4-303	July 1, 2007	Defines "child pornography" to include "computer-generated image[s] or picture[s]".	Existing criminal penalties apply.
Wyoming	AI CSAM	Amendment to Intimate Image Law	Wy. Code § 6-4-306	July 1, 2021	- Defines intimate image to include "computer generated image[s]" under the unlawful dissemination of intimate images. - Makes it a felony to knowingly produce, distribute, or possess such computer-generated or synthetic depictions of minors engaged in sexual acts, regardless of whether a real child was involved.	Existing penalties apply.